

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Lai	Team: Team # 1	CCRB Case #: 201009429	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/06/2010 12:00 AM, Wednesday, 07/07/2010 12:05 AM	Location of Incident: West 155th Street and Bradhurst Avenue	18 Mo. SOL 1/7/2012	Precinct: 32		
Date/Time CV Reported Mon, 07/12/2010 2:41 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/12/2010 2:41 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jaysen Basnight	29694	936178	032 PCT
2. POM Thomas Cozart	28181	938283	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM William Mullin	23348	919456	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jaysen Basnight	Abuse: PO Jaysen Basnight stopped § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Thomas Cozart	Abuse: PO Thomas Cozart stopped § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POM Jaysen Basnight	Abuse: PO Jaysen Basnight searched § 87(2)(b)	C . Alleged Victim Uncooperative
D . POM Thomas Cozart	Discourtesy: PO Thomas Cozart spoke obscenely and rudely to § 87(2)(b)	D . Unsubstantiated
E . POM Thomas Cozart	Abuse: PO Thomas Cozart refused to provide his shield number to § 87(2)(b)	E . Unsubstantiated
F . POM Jaysen Basnight	Abuse: PO Jaysen Basnight refused to provide his shield number to § 87(2)(b)	F . Unsubstantiated
G . POM Jaysen Basnight	Discourtesy: PO Jaysen Basnight spoke obscenely and rudely to § 87(2)(b)	G . Unsubstantiated
H . POM Thomas Cozart	Abuse: PO Thomas Cozart threatened § 87(2)(b) with the use of force.	H . Unsubstantiated
I . POM Thomas Cozart	Abuse: PO Thomas Cozart searched § 87(2)(b)	I . Alleged Victim Unavailable

Case Summary

§ 87(2)(b) filed a complaint with the CCRB on July 12, 2010.

On July 7, 2010, at approximately 12:05am, § 87(2)(b) was in a parking lot in the vicinity of West 155th Street and Bradhurst Avenue in Manhattan and encountered his brother, § 87(2)(b) and their mutual friend § 87(2)(b). They were then approached by PO William Mullin, PO Jaysen Basnight, and PO Thomas Cozart of the 32nd Precinct. Their subsequent interaction resulted in the following allegations:

- **Allegation A: Abuse of Authority** – PO Jaysen Basnight stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b).
- **Allegation B: Abuse of Authority** – PO Thomas Cozart stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b). § 87(2)(g) it is recommended that **Allegations A and B** be closed as **Unsubstantiated**.
- **Allegation C: Abuse of Authority** – PO Jaysen Basnight searched § 87(2)(b) § 87(2)(g) it is recommended that **Allegation C** be closed as **Victim Uncooperative**.
- **Allegation D: Discourtesy** - PO Thomas Cozart spoke obscenely and rudely to § 87(2)(b).
- **Allegation E: Abuse of Authority** - PO Thomas Cozart to provide his shield number to § 87(2)(b).
- **Allegation F: Abuse of Authority** - PO Jaysen Basnight refused to provide his shield number to § 87(2)(b).
- **Allegation G: Discourtesy** - PO Jaysen Basnight spoke obscenely and rudely to § 87(2)(b).
- **Allegation H: Abuse of Authority** – PO Thomas Cozart threatened § 87(2)(b) with the use of force. § 87(2)(g) it is recommended that **Allegations D, E, F, G and H** be closed as **Unsubstantiated**.
- **Allegation I: Abuse of Authority** – PO Thomas Cozart searched § 87(2)(b) § 87(2)(g) it is recommended that **Allegation G** be closed as **Victim Unavailable**.

This case was ineligible for mediation because § 87(2)(b) expressed his intention of filing a claim against the city. § 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male § 87(2)(b) and has black hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided an in-person statement at the CCRB on August 5, 2010 (encl. D1-5). § 87(2)(g)

On July 7, 2010, at approximately 12:05am, § 87(2)(b) entered a parking lot at West 154th Street, between Macombs Place and 8th Avenue, in Manhattan. As he approached his car, he was stopped by his brother, § 87(2)(b) and their mutual friend, § 87(2)(b), who was identified through investigation as § 87(2)(b). While § 87(2)(b) had nothing on his person, § 87(2)(b) had an unspecified type of bag containing a beer inside it, and inside § 87(2)(b)'s back right pocket was a small bottle of either liquor or beer inside a § 87(2)(b) paper bag. In § 87(2)(b)'s initial complaint narrative, he stated that § 87(2)(b) and § 87(2)(b) had purchased the beer and carried it in a plastic bag. § 87(2)(b) wore a white tee shirt, blue jeans and a black and white cap. § 87(2)(b) is approximately 5'7", with a light § 87(2)(b) complexion and a slightly athletic build. § 87(2)(b) is a black male, who is approximately 6'1", had braids, an athletic build, and a complexion slightly lighter than § 87(2)(b)'s. § 87(2)(b) wore a white tee shirt and black jeans, and § 87(2)(b) wore a tank top and shorts.

While greeting the two men, § 87(2)(b) unlocked his driver's side car door, but did not open it. As he did, he was confronted by two plainclothes male officers, identified via investigation as PO Thomas Cozart and PO Jaysen Basnight of the 32nd Precinct. PO Cozart appeared dark skinned, black, 6'0" tall, heavyset, in his mid thirties with gold teeth. PO Basnight appeared to have a light § 87(2)(b) complexion, and appeared to be black, 5'9-10" tall, with stubble on his chin and a low Caesar haircut. Standing in front of § 87(2)(b)'s car, PO Cozart instructed the men to step towards the front of the car, where § 87(2)(b) had been standing. When § 87(2)(b) asked why, PO Cozart asked if they had weed in the vehicle and repeated his instruction. § 87(2)(b) and § 87(2)(b) complied, but as they did, § 87(2)(b) asked what PO Cozart was talking about and said that no one had any drugs. In § 87(2)(b)'s initial narrative, he stated that PO Cozart asked him if he had weed on top of his car; § 87(2)(b) replied that he neither drinks nor smokes and wanted to know why there would be weed on top of the car since there were fallen leaves around the area. PO Cozart told the men to place their hands on the hood of the car, and the men complied, with the exception of § 87(2)(b) who stood with his arms crossed. During this time, § 87(2)(b) also had his hands on the hood of the car, but was closer to the passenger's side. PO Basnight, who was standing closest to § 87(2)(b) asked him what he had in his pockets while he began to frisk him. § 87(2)(b) responded that he "knew his rights" and that he did not want to be "searched." However, PO Basnight continued to frisk him, patting down his legs, waist and chest. PO Basnight also lifted § 87(2)(b)'s shorts and shook it, removed the bottle out of his back right pocket and removed his wallet out of his back left pocket. PO Basnight also removed § 87(2)(b)'s cell phone and keys from his front pants pockets. § 87(2)(b) insisted that he did not want to be searched, but PO Basnight ignored him. When the search was completed, PO Basnight handcuffed § 87(2)(b).

While § 87(2)(b) was being searched and handcuffed, § 87(2)(b) repeatedly asked both officers for their badge numbers. PO Cozart responded, "Fuck you, I'm not giving you nothing." PO Basnight did not respond, but later, he said "no" and "fuck you." § 87(2)(b) also told PO Cozart that if he wanted to search him, he would have to call his lawyer. PO Cozart said, "Fuck you,

your lawyer can't do nothing for you." Five minutes later, § 87(2)(b) again requested the officers' badge numbers, and PO Cozart said, "If you keep talking, I'm gonna whoop your ass." Approximately five minutes after that, PO Cozart handcuffed § 87(2)(b). During this time, the officers had called for additional officers, and a marked police van containing three uniformed officers arrived. One was a heavyset black male and the other two were white males.

By the time § 87(2)(b) was handcuffed, § 87(2)(b) had already been placed in the van. PO Cozart then frisked and searched § 87(2)(b) in the same manner as § 87(2)(b). No objects other than his cell phone and wallet were found in his pockets. PO Cozart frisked and searched § 87(2)(b) in a similar manner while § 87(2)(b) was placed in the van, next to § 87(2)(b). § 87(2)(b) believed that a uniformed officer handcuffed § 87(2)(b) but he was uncertain because he was inside the van when this occurred. Before he was placed in the van, § 87(2)(b) saw PO Basnight remove the bottle of liquor that was inside § 87(2)(b)'s jeans. PO Basnight opened it (it had previously been sealed), and emptied its contents on the ground. PO Cozart also removed the beer that § 87(2)(b) had been carrying in a bag, and put it on the ground. All the containers were originally closed. The officers then transported the men to the 32nd Precinct stationhouse, where they were issued summonses § 87(2)(a) 160.50.

Attempts to Contact Civilians

On August 17, 2010, a letter was sent to § 87(2)(b). On August 18, Inv. Johnson called § 87(2)(b) at two telephone numbers provided by § 87(2)(b) but neither was in service. On August 31, a voicemail was left on one of the phone numbers and a second letter was sent. On September 1, both telephone numbers were again called but neither was in service. On November 9, Inv. Lai left § 87(2)(b) a voicemail on one of the phone numbers. The letters were successfully delivered and § 87(2)(b) was not incarcerated as per Department of Correction. As of the date of this report, § 87(2)(b) has not responded.

On August 18, Inv. Johnson reached § 87(2)(b) by telephone, but he did not have time to talk and agreed to call back. On August 31, a voicemail was left and a letter was sent. Later that day, § 87(2)(b) left a voicemail. § 87(2)(b) did not call as agreed. On September 1, Inv. Johnson called and spoke with § 87(2)(b) who stated that he would call the next day to schedule an appointment for an in-person statement. On September 7, § 87(2)(b) was called and an appointment was scheduled for an interview at the CCRB on September 14. § 87(2)(b) did not appear for his appointment, and a letter was sent to his address on September 27. On November 9, Inv. Lai called § 87(2)(b) and a prompt stated that the number was inoperable; the number was dialed twice to verify. The letters sent to § 87(2)(b) have been successfully delivered, and § 87(2)(b) was not incarcerated as per Department of Correction. As of the date of this report, § 87(2)(b) has not responded.

NYPD Statements:

Subject Officer: PO JAYSEN BASNIGHT

PO Basnight is a § 87(2)(b) black male § 87(2)(b), and has black hair and brown eyes. PO Basnight was on-duty at 9:30pm on July 6 to 6:30am on July 7, assigned to the 32nd Precinct Conditions unit with PO Cozart and PO Mullin. He did not recall if he was in uniform or in plainclothes.

Memo Book

On July 7, 2010, at 12:15am, PO Basnight stopped three males, issued two summonses to the males, § 87(2)(a) 160.50

Summons

On an unspecified date at 12:15am, PO Basnight issued summonses § 87(2)(a) 160.50 to § 87(2)(b) behind § 87(2)(b) in Manhattan (encl. E4).

CCRB Testimony

PO Basnight was interviewed at the CCRB on December 16, 2010 (encl. E5-6). PO Basnight had no recollection of this incident. During the interview, PO Basnight was shown copies of two summonses issued to § 87(2)(b) during the incident, and he affirmed writing them. PO Basnight was also shown the command log entry in which PO Basnight was listed as the arresting officer for § 87(2)(b). However, upon viewing these documents, PO Basnight was unable to recognize § 87(2)(b) or remember the incident. He did not recall stopping three black males and issuing them summonses with PO Mullin or PO Cozart around the date of the incident.

Subject Officer: PO THOMAS COZART

PO Cozart is a § 87(2)(b) black male § 87(2)(b), is bald, has brown eyes, and wears glasses. He was on-duty from 10:00pm on July 6 to 6:35am on July 7, assigned to the 32nd Precinct Conditions unit with PO Basnight and PO Mullin. He did not recall if he was in uniform or in plainclothes.

Memo Book

On July 7, 2010, at 12:15am, § 87(2)(b) was stopped at § 87(2)(b) and was released with summons § 87(2)(b).

CCRB Testimony

PO Cozart was interviewed at the CCRB on February 11, 2011 (encl. E10-11). PO Cozart had no recollection of this incident. He stated that he stopped and issued summonses to many individuals in that vicinity in the past, but did not recall stopping § 87(2)(b), § 87(2)(b), and § 87(2)(b). He did not recall PO Basnight, PO Mullin, or himself having any interaction with the three civilians.

During the interview, PO Cozart was copies of the summonses issued to § 87(2)(b) and § 87(2)(b) in addition to the 32nd Precinct command log. Although he affirmed that he issued a summons to § 87(2)(b) (summons # § 87(2)(b)) after reviewing the command log, none of the documents refreshed his memory of this incident.

Witness Officer: PO WILLIAM MULLIN

PO Mullin is a § 87(2)(b) white male § 87(2)(b), bald, and has blue eyes. PO Mullin was on-duty at 10:00pm on July 6 to 6:35am on July 7, assigned to the 32nd Precinct Conditions unit, with PO Basnight and PO Cozart in patrol car 5813. He did not recall if he was in uniform or in plainclothes.

Memo Book

PO Mullin had no memo book entries regarding this incident (encl. E12-14).

Summons

On July 6, 2010, at approximately 12:35am, PO Mullin issued summons § 87(2)(b) to § 87(2)(b) § 87(2)(a) 160.50

CCRB Testimony

PO Mullin was interviewed at the CCRB on December 16, 2010 (encl. E16-17). PO Mullin had no recollection of this incident. He did not recall working with PO Basnight, bringing back § 87(2)(b), § 87(2)(b), and § 87(2)(b) to the 32nd Precinct stationhouse and issuing summonses to them. He did not recall stopping, searching, or issuing summonses to three individuals that evening. During the interview, PO Mullin was shown a copy of a summons issued to § 87(2)(b) during the incident, and PO Mullin affirmed that he was the officer that wrote it. However, PO Mullin did not recall the incident or the circumstances that led to his writing the summons to § 87(2)(b). He was also shown a copy of the 32nd Precinct command log, but it did not help PO Mullin's recollection of the incident.

NYPD Documents

Command Log

The 32nd Precinct Tour 1 command log for July 7, 2010 (encl. G1), shows that at 12:25am, PO Basnight, PO Mullin, and PO Cozart brought in § 87(2)(b), § 87(2)(b), and § 87(2)(b) respectively. The log notes that § 87(2)(b) was arrested at 12:05am at § 87(2)(b), and released with a summons at 12:31am. § 87(2)(b) was arrested at 12:15am at § 87(2)(b), and released with two summonses at § 87(2)(b). § 87(2)(b) was arrested at 12:15am at the intersection of West 155th Street and Bradhurst Avenue, and released with a summons at § 87(2)(b).

Summonses for Incident and Disposition

- As of March 22, 2011, § 87(2)(b)'s summons § 87(2)(b) was dismissed. No record of § 87(2)(b)'s summonses (§ 87(2)(b) and § 87(2)(b) or § 87(2)(b)'s (§ 87(2)(b)) was found (encl. I8).

Civilian Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Status of Civil Proceedings

As of March 28, 2011, § 87(2)(b) has not filed a Notice of Claim (encl. J1).

Civilians CCRB History

- § 87(2)(b) has filed the following CCRB complaints (encl. B1):
 - § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)
- This is the first CCRB complaint involving § 87(2)(b) and § 87(2)(b) (encl. B2-3).

Subject Officers CCRB History

- PO Basnight has been a member of the service for 6 years and there is one substantiated CCRB allegation against him, in CCRB case 200706401. He was issued “Command Discipline – B” for his substantiated discourtesy allegation (encl. A1).
- PO Cozart has been a member of the service for 5 years and there is one substantiated CCRB allegation against him, in CCRB case 200710853. He was issued Instructions for his substantiated force allegation (encl. A2).

Conclusion

Identification of Subject Officers

PO Mullin and PO Basnight were identified by the summonses which they issued to § 87(2)(b) and § 87(2)(b). PO Cozart was identified by the command log, which listed him as the officer who brought in § 87(2)(b) and who issued him a summons. § 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pled

§ 87(2)(g)

Allegation A: Abuse of Authority – PO Jaysen Basnight stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b)

Allegation B: Abuse of Authority – PO Thomas Cozart stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **Unsubstantiated**.

Allegation C: Abuse of Authority – PO Jaysen Basnight searched § 87(2)(b)

§ 87(2)(b) stated that PO Basnight searched § 87(2)(b) prior to § 87(2)(b)'s arrest and transport to the 32nd Precinct stationhouse. § 87(2)(g)

it is therefore recommended that **Allegation C** be closed **Victim Uncooperative**.

Allegation D: Discourtesy - PO Thomas Cozart spoke obscenely and rudely to § 87(2)(b)

Allegation E: Abuse of Authority - PO Thomas Cozart to provide his shield number to § 87(2)(b)

Allegation F: Abuse of Authority - PO Jaysen Basnight refused to provide his shield number to § 87(2)(b)

Allegation G: Discourtesy - PO Jaysen Basnight spoke obscenely and rudely to § 87(2)(b)

Allegation I: Abuse of Authority – PO Thomas Cozart threatened § 87(2)(b) with the use of force.

While § 87(2)(b) was being searched and handcuffed, § 87(2)(b) repeatedly asked both officers for their badge numbers. PO Cozart responded, “Fuck you, I’m not giving you nothing.” PO

Basnight did not respond, but later he said “no” and “fuck you.” Five minutes later, § 87(2)(b) again requested the officers’ badge numbers, and PO Cozart said, “If you keep talking, I’m gonna whoop your ass.” PO Cozart and PO Basnight did not recall this incident and did not recall making these remarks. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations D, E, F, G, and I** be closed as **Unsubstantiated**.

Allegation H: Abuse of Authority – PO Thomas Cozart searched § 87(2)(b)

§ 87(2)(b) stated that PO Cozart searched § 87(2)(b) prior to his arrest and transport to the 32nd Precinct stationhouse. However, as § 87(2)(b) has not responded to contact attempts, it is therefore recommended that **Allegation H** be closed as **Victim Unavailable**.

Team: _____

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Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date